

24STCV27905 24STCV27905

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Case Number: 24STCV27905 Hearing Date: July 9, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JEANETTE C. JOHNSON by and through her Successor
in Interest, KARI L. MAYA, et al.,

Plaintiffs,

vs.

OAK FENCE SENIOR LIVING LLC, et al.,

Defendants.

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CASE NO.: 24STCV27905

[TENTATIVE] ORDER SUSTAINING DEMURRER TO
FIRST AMENDED COMPLAINT; GRANTING MOTION TO STRIKE

Dept. 506

8:30 a.m.

July 9, 2026

On

August 4, 2025, Plaintiffs Jeanette C. Johnson (by and through her Successor in Interest, Kari L. Maya), Kari L. Maya, Teri M. Montgomery, and Ladonna A. Lopez filed a first amended complaint ("FAC").

The FAC alleges (1) elder abuse/neglect, (2) negligence, (3) violation of residents' rights, and (4) wrongful death.

On

October 3, 2025, Defendant Priority Care Professional Home Health Inc. filed a demurrer to the first and third causes of action and a motion to strike. Plaintiffs later dismissed the third cause of action against Defendant.

DEMURRER

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015)

To

plead elder abuse, the plaintiff must allege “facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care [citations]; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs [citations]; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) [citations].” (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 406-407 (Carter).) “The plaintiff must also allege . . . that the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering.” (Id. at p. 407.) There must be an allegation of authorization or ratification on the part of a managing agent in order to recover damages for dependent adult abuse against corporate defendants. (Civ. Code, § 3294; Welf. & Inst. Code, § 15657, subd. (c).)

“‘[N]eglect’

within the meaning of Welfare and Institutions Code section 15610.57 covers an area of misconduct distinct from ‘professional negligence.’” (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 783.) “As used in the [Elder Adult and Dependent Adult Civil Protection] Act, neglect refers not to the substandard performance of medical services but, rather, to the ‘failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.’” (Ibid.) To distinguish dependent adult abuse from professional negligence, there must be a showing of recklessness, fraud, malice, or oppression. (Ibid.)

Defendant

argues that the FAC “is bereft of specific facts.” (Demurrer at p. 5.) Plaintiffs allege that after almost a month of care in two other facilities, Defendant “was contracted to provide Home Health services” to the decedent, but it “failed to provide services” to the decedent during those four days. (FAC ¶¶ 45, 47-50.) On the fourth day, the sacrum “was staged by [Defendant] PRIORITYCARE as Stage II (photographs show a stage IV wound),” and “[s]everal other wounds were noted including unstageable left heel, unstageable right ankle, and stage II right gluteus wound.” (FAC ¶ 46.) Defendant “neglected to provide medical care for JOHNSON’s physical and mental health needs by failing to take all the necessary steps to properly care for her . . . failed to adequately inform JOHNSON’s physician

of the nature and extent of her injuries and failed to carry out doctor's orders adequately and completely for their treatment and failed to adequately and appropriately document JOHNSON's plan of care." (FAC ¶ 78.) Defendant also ratified the mistreatment when it "failed to terminate, discipline, reprimand, or otherwise repudiate the acts and omissions of any employee due to or based upon the care, treatment, monitoring or supervision, or lack thereof." (FAC ¶ 81.) These allegations lack the required particularity.

Plaintiffs

argue that they "need only set forth the essential facts of the case with reasonable precision and particularity sufficient to acquaint the defendant with the nature of the claim," and that recklessness, oppression, fraud, or malice need to be proven only at trial, not alleged in the pleadings.

(Opposition at pp. 3-4 [formatting omitted].) Not so.

Plaintiffs' cited case does not involve elder abuse. For elder abuse, "the facts constituting the neglect and establishing the causal link between the neglect and the injury 'must be pleaded with particularity,' in accordance with the pleading rules governing statutory claims." (Carter, supra, 198 Cal.App.4th at p. 407.)

The

demurrer is sustained.

MOTION

TO STRIKE

The

court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).)

Defendant

moves to strike allegations related to punitive damages and attorney fees under Welfare & Institutions Code section 15657.

A plaintiff can recover punitive damages in tort cases where "the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (a).) "The mere allegation an intentional tort was committed

is not sufficient to warrant an award of punitive damages. [Citation.]

Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]" (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166, fn. omitted.)

For
the reasons discussed with the demurrer, the motion to strike is granted.

CONCLUSION

The
demurrer is SUSTAINED with 30 days' leave to amend.

The
motion to strike is GRANTED with 30 days' leave to amend.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 9th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court